

Heard the arguments of the L/c for the DHR on the limitation.

In this case the DHR has got the decree for recovery of money on 02.08.2010. The 12 yrs limitations to file the executing the decree will expires on 02.08.2022. But this petition being filed before this court on 26.09.2023, which is after lapse of more than 1 yr, 1 month 24 days.

But L/c for the DHR submits that, the Hon'ble Apex court in its sue moto WP(C) no.3/20 and Misc application no.21/22 , vide its order dt 10.01.2022 excluded the period btw 15.03.2020 to 28.02.2022 for the purpose of limitation. Thus he contended that, the said period is requires to be added to the remaining period commences from 01.03.2022 to file the petition.

According to him as on 01.03.2022 the DHR has the 5 months 1 day time to file the petition, for which the saved period btw 15.03.2020 to 28.02.2022, which comes of 1 yr, 1 month 24 days are requires to be added to the 5 months 1 day, the total period available to the DHR to file petition is 1 yrs 6 months 24 days from 01.03.2022, said period will expires on 25.09.2023. As the petition is filed on 26.09.2023, the said petition is well in time.

The contention of the DHR is cannot be accepted for the simple reason that, the Hon'ble Apex court by considering the gravity of the Covid break down in the country was pleased to exclude the period btw 15.03.2020 to 28.02.2022 in the event if the limitation expired btw that period or limitation commences, in any of the circumstances the Hon'ble Apex court hold that, 90 days period is available from 01.03.2022. If the remaining period of limitation is exceeding the 90 days in that event the longer period is going to be applied. If the said aspect are considered, the case of the DHR will not fall in any of the

conditions. In fact the limitations to file the present petition was not expired btw the period excluded for the purpose of limitation by the Hon'ble Apex court. In fact the DHR was having 5 months 1 day period from 01.03.2022 to file their petition, which expires on 01.09.2022 in that event the DHR should have been filed the present petition on or before 01.09.2022, as the present petition is filed after expiry of the limitation period, thus petition do not survives for the execution. Thus this petition is dismissed as it time barred decree.

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XII Add.CC & SJ., B'luru